



**HIGH COURT OF JUDICATURE AT ALLAHABAD
LUCKNOW**

WRIT - A No. - 13096 of 2025

Sarvesh Kumar (Sap I.D. 11001898)

.....Petitioner(s)

Versus

U.P. Power Corporation Ltd. Shakti Bhawan Lko.
Thru. Chairman And 3 Others

.....Respondent(s)

Counsel for Petitioner(s)	: Pt. S. Chandra, Girish Chandra Misra, Ravi Kant Mishra
Counsel for Respondent(s)	: Neerav Chitravanshi, Alok Saran

Court No. - 18

HON'BLE SHREE PRAKASH SINGH, J.

Short counter affidavit filed today by the respondent no. 2 & 3 is taken on record.

Heard learned counsel for the petitioner and Mr. Alok Saran, learned counsel for the respondents.

Challenge is laid to the order dated 29.10.2025 passed by the Managing Director, Madhyanchal Vidyut Vitran Nigam Ltd., Lucknow

Contention put forth by the learned counsel for the petitioner is that the petitioner, who was appointed as Junior Engineer in the Electricity Department, kept on working to the satisfaction of his superior and his career was unblemished through the service period. A complaint was made that the electricity connection was not given to the consumer and because of the delay in electricity connection, the Department has suffered loss in crores but the same is not due to the petitioner as he had only supervisory role and there is no lethargyness on the part of the petitioner, so as to issue the electricity connection.

Adding his arguments, he submitted that clause 4.4(e) of U.P. Electricity Supply Code, 2005 provides that licensee should not be responsible if the delay is on account of the 'Right Of Way' and, admittedly, there was some hindrance and for that reason, the electricity connection could not be completed within the time prescribed. He submitted that the matter will not lead to major punishment and, therefore, the suspension order is

unsustainable in the eyes of law.

Learned counsel for the Electricity Department has opposed the contention aforesaid and submitted that because of the act of the petitioner, the Department has suffered loss, in crores, which is a public exchequer. He submits that in fact, it is the petitioner, who is to look after the issuance of electricity connection under his supervision and he has rightly been put under suspension.

Considering the submissions of the learned counsel for the parties, it is apparent that the petitioner being the Sub Divisional Officer had supervisory duty in grant of electricity connection and admittedly, there was some hindrance regarding the 'Right Of Way' and that is the reason of delay, in undertaking the electricity connection. This Court has also noticed that there is no complaint that the petitioner is not co-operating in the enquiry proceedings and he has undertaken that he will always remain present and would co-operate in the enquiry proceedings.

In view of the aforesaid, matter requires consideration.

Let notice be issued to the respondent no.4 returnable at an early date.

Steps be taken within one week.

List this matter in third week of December 2025.

Until further orders, the impugned suspension order shall remain stayed.

November 14, 2025

Ram Murti

(Shree Prakash Singh,J.)